
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

IN THE MATTER OF	)	NO. 12-001
	)	
SHELLY SCHAFER,	)	COMBINED STATEMENT OF
	)	CHARGES, SETTLEMENT
RESPONDENT.	)	AGREEMENT, AND FINAL ORDER

COMES NOW the Iowa Board of Behavioral Science (Board) and Shelly Schafer (Respondent), and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order (Agreement) pursuant to Iowa Code sections 17A.10(2) and 272C.3(4) and 645 Iowa Administrative Code rule 12.1.

1. Respondent was issued Iowa license number 00989 to practice as a mental health counselor on December 12, 2006.
2. Respondent's license number 00989 is currently inactive.
3. Respondent's address as reported to the Board is 12852 18^{5th} St., Wellsburg, Iowa 50680.
4. The Board has jurisdiction of this matter pursuant to Iowa Code chapters 147, 154D, and 272C.

STATEMENT OF CHARGES

COUNT I

Respondent is charged with practicing as a mental health counselor with an inactive license, in violation of 645 Iowa Administrative Code rule 31.10(8), pursuant to Iowa Code section 147.55(9) and 645 Iowa Administrative Code rule 33.2(26).

FACTUAL CIRCUMSTANCES

5. Respondent's license number 00989 expired on September 30, 2010.
6. Respondent practiced as a mental health counselor from October 1, 2010, until February 5, 2013, when she realized her license had expired.

SETTLEMENT AGREEMENT AND FINAL ORDER

7. Execution of this Combined Statement of Charges, Settlement Agreement, and Final Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing

and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Agreement. This Agreement shall constitute the final order of the Board in this case and shall have the force and effect of a disciplinary order entered following a contested case hearing.

8. Respondent is freely and voluntarily entering into this Agreement. Respondent agrees that the State's counsel may present this Agreement to the Board and may have *ex parte* communications with the Board while presenting it.

9. Respondent is hereby CITED for practicing as a mental health counselor with an inactive license, and WARNED that Respondent's failure to comply with the law governing the practice of mental health counselors in Iowa could result in further discipline against Respondent's occupational license, including suspension or revocation.

10. Respondent shall remit to the Board a civil penalty in the amount of one-thousand dollars (\$1,000.00) made payable to "Treasurer, State of Iowa," within ninety (90) days of Board approval of this Agreement.

11. This Agreement shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

12. In the event Respondent violates or fails to comply with any of the terms of this Agreement, the Board may impose other licensee discipline in accordance with Iowa Code section 147.55(9).

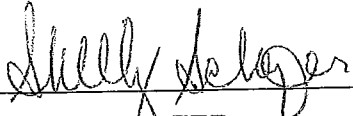
13. This Agreement is subject to approval by the Board. If the Board does not approve this Agreement, it shall be of no force or effect on either party, and shall not be admissible for any purpose in further proceedings in this matter.

14. This Agreement is a public record.

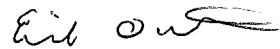
15. This Agreement shall not be binding as to any new complaints received by the Board.

16. Respondent acknowledges that she has the right to be represented by counsel on this matter.

AGREED AND ACCEPTED:


SHELLY SCHAFER
RESPONDENT

Dated this 22 day of
October, 2013


CHAIRPERSON, IOWA BOARD OF
BEHAVIORAL SCIENCE

Dated this 7th day of
November, 2013

Copies to:

Laura Cathelyn
Assistant Attorney General
Hoover Building, 2nd Floor
Des Moines, IA 50319

Shelly Schafer
12852 185th Street
Wellsburg, IA 50680